

DATA PROCESSING ADDENDUM (DPA)
to Master Services Agreement SG-MSA-2026-NIMBUS-09

Effective Date: January 1, 2026

This Data Processing Addendum (the “**DPA**”) is entered into by and between:

Société Générale International S.A. (the “**Controller**”),

and

NimbusPay LLC (the “**Processor**”).

This DPA forms an integral part of the Master Services Agreement referenced above (the “**MSA**”) and is subject to all terms and conditions thereof. In the event of any conflict between this DPA and the MSA, the terms of this DPA shall prevail with respect to the processing of Personal Data.

WHEREAS, the Controller and Processor have entered into the MSA pursuant to which the Processor will provide certain services to the Controller involving the processing of Personal Data;

WHEREAS, the Parties wish to ensure compliance with Regulation (EU) 2016/679 (the “**GDPR**”) and other applicable data protection laws, particularly Article 28 thereof;

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS

Capitalized terms used but not defined herein shall have the meanings set forth in the MSA or the GDPR. For the purposes of this DPA:

- 1.1 “Personal Data”** means any information relating to an identified or identifiable natural person.
- 1.2 “Processing”** means any operation or set of operations performed on Personal Data.
- 1.3 “Data Subject”** means the identified or identifiable natural person to whom Personal Data relates.
- 1.4 “Subprocessor”** means any third party engaged by the Processor that processes Personal Data on behalf of the Controller.

2. PROCESSING SPECIFICATIONS

The Processor shall process Personal Data solely on behalf of and in accordance with the documented instructions of the Controller, as set forth in this DPA and the MSA.

2.1 Details of Processing (GDPR Article 28(3))

- 2.1 Categories of Data Subjects:** Retail Banking Customers and Institutional Traders of the Controller.
- 2.2 Nature and Purpose of Processing:** Real-time transaction authorization, settlement capture, transaction routing, card processing routines, and related payment facilitation activities necessary for the performance of the Services under the MSA.

2.3 Types of Personal Data: Full names, billing addresses, credit card numbers (Primary Account Numbers or PANs), card expiration dates, card verification values (where applicable), account histories, transaction records, and any other personal data provided by the Controller or generated during the provision of Services.

2.4 Duration of Processing: For the duration of the MSA and for a period not exceeding thirty (30) days after termination or expiry thereof, unless otherwise instructed by the Controller.

3. SUBPROCESSORS

3.1 The Processor shall not engage any Subprocessor without the prior written consent of the Controller.

3.2 The Controller hereby authorizes the Processor to engage the following Subprocessors as of the Effective Date:

- Amazon Web Services (AWS), Region: eu-west-1 (Ireland), for secure cloud infrastructure and data hosting.
- Snowflake Data Cloud, for data warehousing and analytics processing.

3.3 The Processor shall enter into written agreements with each Subprocessor that impose obligations no less protective than those set out in this DPA.

3.4 The Processor shall notify the Controller in writing at least thirty (30) days in advance of any intended addition or replacement of a Subprocessor. The Controller may object to such change within fifteen (15) days. If the Controller objects, the Parties shall work together in good faith to resolve the objection or find an alternative solution.

4. TECHNICAL AND ORGANIZATIONAL MEASURES (TOMs)

The Processor shall implement and maintain appropriate technical and organizational measures to ensure the security of Personal Data, including but not limited to:

- 4.1** Encryption of Personal Data at rest using AES-256 or equivalent industry-standard algorithm.
- 4.2** Encryption of Personal Data in transit using TLS 1.3 or higher.
- 4.3** Strict access controls, including role-based access, multi-factor authentication, and least privilege principles.
- 4.4** Regular security audits, vulnerability scanning, and penetration testing.
- 4.5** Employee training on data protection and confidentiality obligations.
- 4.6** Incident response procedures and business continuity measures.
- 4.7** Measures to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems.

The Processor shall provide the Controller with a summary of its current TOMs upon request and shall notify the Controller of any material changes.

5. DATA BREACH NOTIFICATION

- 5.1** In the event of a confirmed or reasonably suspected Personal Data Breach affecting Controller Personal Data, the Processor shall notify the Controller via security-alerts@socgen.com within exactly twenty-four (24) hours of initial discovery.
- 5.2** Such notification shall include, at a minimum: (i) a description of the nature of the breach, (ii) the categories and approximate number of Data Subjects and records concerned, (iii) the likely consequences, and (iv) the measures taken or proposed to address the breach.
- 5.3** The Processor shall cooperate fully with the Controller in investigating and remediating any such breach and in fulfilling the Controller's obligations under Articles 33 and 34 of the GDPR.

6. ASSISTANCE TO THE CONTROLLER

The Processor shall assist the Controller in ensuring compliance with GDPR obligations, including with respect to data subject rights, data protection impact assessments, and prior consultations with supervisory authorities. Such assistance shall be provided at the Controller's reasonable request and expense (unless the request arises from the Processor's breach).

7. RETURN OR DELETION OF PERSONAL DATA

Upon termination or expiry of the MSA, or at any time upon the Controller's request, the Processor shall, at the Controller's choice, return or securely delete all Personal Data and certify in writing that it has done so, except to the extent retention is required by applicable law.

8. AUDITS

The Controller or its designated auditor shall have the right to audit the Processor's compliance with this DPA upon reasonable notice, not more than once per year, unless there is reasonable suspicion of non-compliance.

9. GOVERNING LAW

This DPA shall be governed by the laws of France and the applicable provisions of EU data protection law.

IN WITNESS WHEREOF, the Parties have executed this DPA as of the Effective Date.

**For Société Générale International For NimbusPay LLC (Processor):
S.A. (Controller):**

Name:
Title:
Date:

Name:
Title:
Date:

APPENDIX A: PROCESSING DETAILS

Element	Description
Categories of Data Subjects	Retail Banking Customers, Institutional Traders
Nature of Processing	Real-time authorization, settlement capture, and transaction routing
Types of Personal Data	Full names, billing addresses, credit card numbers (PANs), card expiration dates, account histories, transaction records
Duration	Term of the MSA plus up to 30 days post-termination

APPENDIX B: APPROVED SUBPROCESSORS

Subprocessor	Location / Region	Purpose
Amazon Web Services (AWS)	eu-west-1 (Ireland)	Secure cloud infrastructure and data hosting
Snowflake Data Cloud	As designated by Processor (subject to EU adequacy or safeguards)	Data warehousing and analytics